DATA PROCESSING AGREEMENT

Synthetic controller–processor agreement | Intentionally weak test

DOCUMENT STATUS

Intentionally contains material omissions and weak terms so a compliance checker can test whether it identifies problems. Do not use as a real agreement.

IMPORTANT TESTING NOTE

This is a fictional, synthetic contract created for software testing. It is not an executed agreement and must not be relied on as legal advice or as a verified statement of GDPR compliance. Names, addresses, dates, and business facts are fictional.

PARTIES

Controller: Northstar Retail Europe Ltd., 18 Market Square, Dublin, Ireland (fictional).
Processor: CloudLedger Systems Ltd., 42 Harbour Road, Rotterdam, Netherlands (fictional).

AGREEMENT DATE

11 October 2026

1. Definitions and roles

In this Agreement, “Controller”, “Processor”, “Personal Data”, “Personal Data Breach”, “Processing”, and “Data Subject” have the meanings given in Regulation (EU) 2016/679 (the GDPR). The Controller determines the purposes and means of processing. The Processor processes Personal Data on behalf of the Controller only as described in this Agreement and its Annex 1.

2. Subject matter, duration, nature and purpose

The Processor will provide hosted customer-support and order-management software for the Controller for the term of the underlying services agreement. Processing continues for the service term and any limited period needed to return or delete data. Processing consists of hosting, organizing, retrieving, transmitting, and supporting customer-service records for the purpose of managing customer enquiries and orders.

3. Categories of data and data subjects

Data subjects may include the Controller’s customers, prospective customers, and employees who contact customer support. Personal Data may include names, business contact details, order identifiers, customer-service correspondence, and account metadata. The Controller must not upload special-category data unless the parties first document the processing and establish an appropriate legal basis and safeguards.

4. Instructions

The Processor may use Personal Data for service delivery and for any other business purposes it considers useful. The Controller’s instructions may be followed when practical.

5. Confidentiality

The Processor will try to ensure that staff handle customer data responsibly. No specific confidentiality commitment is required from temporary workers or contractors.

6. Security

The Processor will use commercially reasonable security measures. The Processor decides which measures are appropriate and is not required to document or review them.

7. Subcontractors

The Processor may appoint any subcontractor without notifying the Controller. The Processor is not responsible for subcontractor actions once data has been passed to them.

8. Data-subject requests

The Processor may respond directly to any request from an individual at its discretion. The Processor does not have to assist the Controller with requests.

9. Breach notification

The Processor will notify the Controller of a serious breach when it has completed its internal investigation. No notification deadline or minimum information is agreed.

10. Audits

The Processor may decline all audit requests. The Controller accepts the Processor’s annual self-certification as sufficient evidence of compliance.

11. End of service

After termination, the Processor may retain all data indefinitely for analytics and product improvement. The Controller has no right to request deletion or return.

12. International access

The Processor may make Personal Data available to any affiliate or service provider worldwide without additional documentation.

13. General terms

The parties will discuss privacy issues in good faith. This Agreement does not identify a detailed processing schedule, data-subject categories beyond the general description above, or an authorised sub-processor list.

Annex 1 — Processing details

The Processor handles customer information to provide services. The parties have not specified the full data categories, data-subject categories, retention period, or permitted processing operations.

Annex 2 — Sub-processors

No list supplied. The Processor may add providers at its discretion.

SIGNATURES

For the Controller: _____ Name/Title: _____ Date: _____

For the Processor: _____ Name/Title: _____ Date: _____

End of synthetic test contract.